

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 825

Introduced by Ballard, 21.

Read first time January 07, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Mental Health Practice Act; to amend
- 2 sections 38-2101 and 38-2123, Revised Statutes Cumulative
- 3 Supplement, 2024; to require training on domestic abuse as
- 4 prescribed; to provide an operative date; and to repeal the original
- 5 sections.
- 6 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 38-2101, Revised Statutes Cumulative Supplement,
2 2024, is amended to read:

3 38-2101 Sections 38-2101 to 38-2147 and section 2 of this act shall
4 be known and may be cited as the Mental Health Practice Act.

5 **Sec. 2.** (1) Every two years, a minimum of two hours of continuing
6 education in domestic abuse counseling shall be required for all licensed
7 mental health practitioners under the Mental Health Practice Act.

8 (2) Such training shall be conducted by an individual who has (a)
9 received the domestic abuse training required in section 38-2123, (b) a
10 minimum of three years' experience working with victims of domestic abuse
11 or offenders, and (c) completed an additional forty hours in domestic
12 abuse-related training.

13 (3) For purposes of the section, domestic abuse is abuse as defined
14 in section 42-903.

15 **Sec. 3.** Section 38-2123, Revised Statutes Cumulative Supplement,
16 2024, is amended to read:

17 38-2123 (1) A person who needs to obtain the required three thousand
18 hours of supervised experience in mental health practice as specified in
19 section 38-2122 to qualify for a mental health practitioner license shall
20 obtain a provisional mental health practitioner license. To qualify for a
21 provisional mental health practitioner license, such person shall:

22 (a) Have a master's degree, a doctoral degree, or the equivalent of
23 a master's degree, as determined by the board, that consists of course
24 work and training which was primarily therapeutic mental health in
25 content and included a practicum or internship and was from a mental
26 health program as specified in section 38-2122;

27 (b) Apply prior to earning the three thousand hours of supervised
28 experience; ~~and~~

29 (c) Pay the provisional mental health practitioner license fee;
30 and -

31 (d) Obtain three hours of training on domestic abuse, which shall

1 include: (i) Appropriate screening tools for victims of domestic abuse;
2 (ii) indicators of high lethality or risk; (iii) documentation standards;
3 (iv) appropriate referrals to domestic abuse specific services, advocacy,
4 and systems navigation professionals; (v) impact on children; (vi)
5 ethical practice and boundaries; and (vii) trauma-informed, victim-
6 centered care and safety planning. For purposes of this subdivision (1)
7 (d), domestic abuse means abuse as defined in section 42-903.

8 (2) The rules and regulations approved by the board and adopted and
9 promulgated by the department shall not require that the applicant have a
10 supervisor in place at the time of application for a provisional mental
11 health practitioner license.

12 (3) A provisional mental health practitioner license shall expire
13 upon receipt of licensure as a mental health practitioner or five years
14 after the date of issuance, whichever comes first.

15 (4) A person who holds a provisional mental health practitioner
16 license shall inform all clients that he or she holds a provisional
17 license and is practicing mental health under supervision and shall
18 identify the supervisor. Failure to make such disclosure is a ground for
19 discipline as set forth in section 38-2139.

20 **Sec. 4.** This act becomes operative on January 1, 2027.

21 **Sec. 5.** Original sections 38-2101 and 38-2123, Revised Statutes
22 Cumulative Supplement, 2024, are repealed.